

§ 325.1. The probable-cause hearing; time. 1. At the initial appearance, if the respondent denies a charge contained in the petition and the court determines that the respondent shall be detained for more than three days pending a fact-finding hearing, the court shall schedule a probable-cause hearing to determine the issues specified in section 325.3 of this part.

2. Such probable-cause hearing shall be held within three days following the initial appearance or within four days following the filing of a petition, whichever occurs sooner.

3. For good cause shown, the court may adjourn the hearing for no more than an additional three court days.

4. The respondent may waive the probable-cause hearing, but the fact that the respondent is not ready for a fact-finding hearing shall not be deemed such a waiver.

5. Where the petition consists of an order of removal pursuant to article seven hundred twenty-five of the criminal procedure law, unless the removal was pursuant to subdivision three of section 725.05 of such law and the respondent was not afforded a probable cause hearing pursuant to subdivision three of section 722.20 of such law, the petition shall be deemed to be based upon a determination that probable cause exists to believe the respondent is a juvenile delinquent and the respondent shall not be entitled to any further inquiry on the subject of whether probable cause exists. After the filing of any such petition the court must, however, exercise independent, de novo discretion with respect to release or detention as set forth in section 320.5 of this part.